

are parties to opposition proceedings. In addition, Art. 105 EPC makes provision for intervention by the assumed infringer. For further details, see chapter III.P. "Intervention".

As a matter of principle, the boards of appeal have to examine the question of party status *ex officio* before dealing with the substance of the case (cf. e.g. T 384/08, T 540/13).

In T 811/90 (OJ 1993, 728) opposition proceedings had been concluded and the time limit for lodging an appeal had expired. Only the patent proprietor lodged an appeal, but against a separate decision on a point incidental to the opposition (removal of documents from the public part of the file). It was held that the other party had no right to be a party to the appeal as he had not been a party to the relevant decision.

However, in a decision concerning an appeal against a Legal Division decision refusing to suspend grant proceedings under R. 13 EPC 1973 (R. 14 EPC), the applicant was to be treated as a party to the proceedings. The request for suspension could not be separated from the grant proceedings. The applicant's legal position was directly affected by suspension, because for its duration he was denied the rights under Art. 64(1) EPC 1973 (J 33/95 of 18 December 1995).

An applicant who was not heard when grant proceedings were suspended at a third party's request pursuant to R. 13 EPC 1973 could still challenge the justification for that suspension. He was a party as of right to any appeal proceedings initiated by the third party against rejection of the latter's request by the EPO (J 28/94, OJ 1997, 400).

In T 643/91 the **appeal** of opponent 1 was rejected as inadmissible. Opponent 2 filed an admissible appeal. Opponent 1 was considered by the board to be "any other party to the proceedings" under Art. 107 EPC 1973 and, as a consequence, to be a party as of right in the appeal proceedings of opponent 2.

In T 898/91 it was held that an opponent whose **opposition** had been rejected as inadmissible by the opposition division and who had not filed an appeal against this decision was not entitled to be a party to any appeal proceedings brought by the patent proprietor, because it ceased to be a party to the opposition proceedings once the decision on the admissibility of its opposition took full legal effect.

T 540/13 followed T 1178/04 (OJ 2008, 80) rather than T 898/91. The board stated that when an opposition division decides that an opposition is inadmissible in a case where at least one other admissible opposition has been filed, it is not necessary for the opponent of the opposition held inadmissible to appeal this decision in order to preserve its party status in appeal proceedings initiated by another party.

Where two opponents lodge appeals contesting different sets of claims and one subsequently withdraws its appeal, it becomes a party as of right under Art. 107 EPC and the other opponent becomes the sole appellant (see e.g. T 233/93).

Where a company is dissolved and thus ceases to be a legal person, it loses its capacity to be a party to any proceedings. If it was the original appellant, the appeal consequently lapses (T 353/95 and T 2334/08). However, a party's opponent or appellant status does not lapse merely as a result of bankruptcy proceedings being issued (T 696/02). See also G 1/13 (OJ 2015, A42) on recognising a company's retrospective restoration under national law (see below in this chapter V.A.2.4.3 d)).

Third parties commenting under Art. 115 EPC 1973 on the patentability of the invention claimed are not parties to the proceedings before the EPO. See also chapter III.N. "Observations by third parties".

b) Rights of parties under Article 107 EPC

In appeal proceedings, the case law recognises the right of all parties to be heard (see J 20/85, OJ 1987, 102; J 3/90, OJ 1991, 550; T 18/81, OJ 1985, 166; T 94/84, OJ 1986, 337; T 716/89, OJ 1992, 132). The parties also have a right to oral proceedings.

Furthermore, G 1/86 (OJ 1987, 447) recognised the validity of the principle that all parties must be treated equally in similar legal situations in proceedings before the boards of appeal.

Decision T 73/88 (OJ 1992, 557) deduced from this that all parties to proceedings had the right to continue appeal proceedings. If there was already one valid appeal, no further appeals were needed and the fees paid for appeals filed later had to be refunded. However, in decision G 2/91 (OJ 1992, 206) the Enlarged Board disagreed. It took the view that from the legal point of view the status of parties who had filed an appeal was not comparable with that of those who had not. It was clear from generally recognised principles of procedural law that the appellant alone could decide whether the appeal filed by him was to stand. Art. 107, second sentence, EPC 1973 only guaranteed non-appellants who were party to proceedings of the first instance that they were parties to **existing** appeal proceedings. A person who was entitled to appeal but did not do so, settling instead for being "automatically" a party to the appeal proceedings, had no independent right of his own to continue those proceedings if the appellant withdrew his appeal. He acquired that right only by filing an appeal himself and paying the associated appeal fee. By the same token, there was also no reason to refund the fee for any appeals filed after the first, unless the requirements of R 67 EPC 1973 (R 103 EPC) were met. The related issue of whether non-appealing parties can file substantive requests is dealt with in G 9/92 and G 4/93 (both OJ 1994, 875; see also chapter V.A.3.1. "Binding effect of requests – no reformatio in peius").

Also in T 864/02 the board found that, according to some case law, a non-appealing party as of right did not have the same procedural status in all respects as did an appellant e.g., it did not have an independent right to continue appeal proceedings if the appellant withdrew its appeal (see G 2/91, OJ 1992, 206 and G 9/92, OJ 1994, 875). However, the case law also confirmed the right to be heard of all parties to pending proceedings (principle that all parties must be treated fairly and equally). The party as of right was thus

entitled to raise a novelty objection where the notice of opposition had raised this ground and the submission therefore lay within the framework of the opposition procedure. In T 591/01 and T 475/97 the respective parties as of right were allowed to submit requests.

c) The boards' duty of impartiality in inter partes proceedings

In T 1072/93 the board held that the freedom of the board to offer specific advice to one of the parties as to how an objection might be overcome, even when such an objection stemmed from the board itself, was severely limited, especially in inter partes proceedings where the preservation of judicial impartiality was a paramount requirement. In T 253/95, the same board confirmed that boards of appeal in inter partes proceedings must be strictly impartial and found that alerting a party to a possible argument against him and on a ground on which the burden of proof rested on him, in advance of the oral proceedings, would amount to a clear violation of the principle of impartiality, irrespective of the fact that the communication setting out such an argument would also be sent to the other party. In T 394/03 the board held that, even though the opposition division's decision to reject the opposition had been annulled, it was not necessary, in the absence of a request, to give the patentee and respondent another opportunity to comment, nor, given the impartiality of the board, was there any requirement on principle to do so.

d) Existence of a company

In the case underlying G 1/13 (OJ 2015, A42) an opposition had been filed by a company which subsequently, under the relevant national law governing the company, for all purposes had ceased to exist. However, the company was subsequently restored to existence under a provision of that governing national law, by virtue of which the company was deemed to have continued in existence as if it had not ceased to exist. The Enlarged Board held that the EPO had to recognise the retroactive effect of that provision of national law. Thus, where a valid appeal was filed in due time in the name of the non-existent opponent and the restoration of the company to existence with retroactive effect took place after the expiry of the time limit for filing the notice of appeal under Art. 108 EPC, the board of appeal had to treat the appeal as admissible. The Enlarged Board referred to the clearly established principle under the EPC that national law should be referred to in order to determine whether a legal entity existed or had ceased to exist, and had capacity to act. The Enlarged Board also considered that the EPO should follow national law as regards the deemed retrospective existence of such a legal entity. This was merely to apply the general principle that such issues are the exclusive concern of national law.

In T 796/12 the patent proprietor raised the objection that company Z, which was registered as the appellant (opponent), had been dissolved as a result of a bankruptcy procedure before the appeal had been filed. Hence, the opponent had ceased to exist as a legal person before the filing of the appeal and could not file the appeal or be the appealing party in the opposition-appeal proceedings. The board stated that whether an opponent to an ongoing opposition appeal case can validly be regarded as a legal entity and act in these proceedings is a matter of national law of the state where the company is incorporated, see G 1/13 (OJ 2015, A42); in the case at issue that state was Germany.

Under German law, even a company removed from the company register could validly perform procedural acts, such as filing a lawsuit in cases where a dispute is related to any form of economic interest. The board thus held that the opponent could file a valid appeal even after its removal from the company register.

2.5. Form and time limit of appeal

2.5.1 Electronic filing of appeal

The EPO's online filing systems can be used to file notice of appeal and all subsequent documents (see decision of the President concerning the electronic filing of documents dated 14 May 2021, OJ 2021, A42). Art. 3 of the President's decision dated 3 March 2021, however, rules out using the **Web-Form Filing** service in appeal proceedings.

In T 1633/18 the applicant submitted both the notice of appeal and a further letter by using the EPO Web-Form Filing service. The board stated that this service could not be used for filing documents in respect of appeal proceedings (see Art. 3 of the decision of the President of 14 May 2021, OJ 2021, A42). If documents in respect of appeal proceedings were nonetheless filed using the EPO Web-Form Filing service, they were deemed not to have been received. In such a situation the sender, if identifiable, should be notified without delay. In the case in hand, the EPO did not notify the applicant in conformity with this provision. Since both letters had been received well before the expiry of the respective time limits (for filing the appeal and for filing a statement of grounds of appeal), by not observing its duty to inform the appellant without delay, the EPO deprived it of the opportunity to resubmit its letters by a correct means of filing. As the appellant resubmitted its letters in a correct manner in reply to the board's communication pursuant to R. 100(2) EPC and as the EPO failed to notify the appellant of its incorrect use of the Web-Form Filing service, the appellant had to be treated, in accordance with the principle of the protection of legitimate expectations, as if it had submitted these letters in a correct manner before the expiry of the respective time limits. See also T 1295/20, in which the board held that the principle of the protection of legitimate expectations was to be applied where the deficiency – in the case in hand: the appellant's address had been filed via Web-Form Filing – could be readily identified by the EPO in the course of its normal handling of the case at the procedural stage in question and could still be corrected by the appellant in time.

The decisions reported below relate to cases settled before the previously applicable President's decision of 10 November 2015 concerning electronic filing of documents (OJ 2015, A91) entered into force (on 16 November 2015).

Under Art. 108 EPC 1973, notice of appeal was filed in **writing**. Art. 108 EPC was amended when the EPC was revised. It now requires appeals to be filed **in accordance with the Implementing Regulations** (see R. 99 EPC). Thus an appeal filed via electronic means (*epoline*®), not being "in writing" was rejected as inadmissible in T 781/04 of 30 November 2005 and T 991/04 of 22 November 2005, referring to the EPO Notice dated 9.12.2003 concerning the My *epoline*® portal. Referring to T 781/04, T 991/04 and

T. 514/05 (OJ 2006, 526), the board in T. 765/08 stated that documents purporting to be documents filed subsequently for the purposes of R. 2(1) EPC (here the notice of appeal) must be deemed not to have been received if they are filed by technical means not approved by the President of the EPO. This applies even if the means of transmission is subsequently allowed (T. 331/08, following T. 514/05); the board was not entitled to exercise discretionary power to consider whether the appeal, filed via *epoline*®, might nonetheless be deemed to have been filed, since i) to do so would be tantamount to exercising legislative power; 2) such legislative power was however clearly delegated in R. 36(5) EPC 1973 to another authority within the EPO, namely the President; 3) thus pursuant to Art. 23(3) EPC 1973 the board was precluded from examining whether this purported notice of appeal could be deemed to have been received, since such a procedure would be *ultra vires*; 4) it was immaterial that this means of communication was now permitted for the filing of appeals. It was the law and instructions in place at the time of filing which had to be applied. The board in T. 1090/08 also found the appeal inadmissible, but on the facts of the case granted re-establishment of rights.

In T. 1427/09 of 17 November 2009 the notice of appeal and statement of grounds were filed in due time but the electronic signatures were not issued to a person authorised to act in the proceedings, in contravention of Art. 8(2) of the decision of the President concerning the electronic filing of documents (OJ 2009, 182), which was silent on the legal consequences of non-compliance. The board held that the principle that the signature of an unauthorised person should be treated like a missing signature, as set out in T. 665/89, should apply not only to handwritten signatures, but also to electronic signatures. The electronic filing of a document in appeal proceedings accompanied by the electronic signature of an unauthorised person should therefore be treated under R. 50(3) EPC like the filing of an unsigned document per mail or telefax in the same proceedings.

2.5.2 Form and content of notice of appeal (Rule 99(1) EPC)

R. 99(1) EPC defines the content of the notice of appeal to be filed within the period specified in Art. 108 EPC. Under R. 99(1) EPC the notice of appeal shall contain, under R. 99(1)(a) EPC, the **name and address of the appellant**, under R. 99(1)(b) EPC an **indication of the decision impugned** and under R. 99(1)(c) EPC, a **request** defining the **subject** of the appeal.

A notice of appeal is a declaration directed to the EPO of the intention to challenge a particular decision by means of an appeal. The declaration of the intent to file an appeal must be clear and unambiguous (T. 551/15).

The requirement of R. 99(1)(c) EPC takes into account the fact that the appellant's initial request, according to G 9/92 and G 4/93 (OJ 1994, 875) and G 1/99 (OJ 2001, 381) defines the subject of the appeal and thereby the framework of the appeal proceedings.